

mean jurisdiction over the subject matter. Bradley v. Fisher, 80 U.S. 646, 651 (1871) The Supreme Court held in Bradley that if a judge had jurisdiction over the subject matter he is clothed with an absolute immunity to civil actions questioning his acts.

If the judge has jurisdiction over the subject matter, he has jurisdiction to determine whether he had jurisdiction over the parties. Baltimore & Ohio Railroad Co. v. Freeze, 82 N.E.761, 169 Ind. 370 (1906), Waugh v. Board of Commissioners of Montgomery County, 115 N.E. 356, 64 Ind. App. 123 (1917).

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II

THE ACT OF JUDGE STUMP IN APPROVING DEFENDANT McFARLIN'S PETITION WAS A JUDICIAL ACT CONCERNING A MATTER OVER WHICH HE HAD JURISDICTION AND LIABILITY FOR WHICH HE IS IMMUNE.

The approval appended to Defendant Ora E. McFarlin's sworn petition shows on its face that it was approved by Harold D. Stump solely in his role as Judge of the DeKalb Circuit Court. It cannot be seriously contended that the petition was presented to him in any other capacity. The act of approval was a judicial act.

Controlling legal principles involved in the doctrine of judicial immunity are as follows:

A. As a general rule judges are immune from civil actions for damages for acts performed in the course of their official

functions. This was the settled law of England and is similarly accepted in this country. Bradley v. Fisher, 13 Wall. 335, 80 U.S. 335, 20 L.Ed. 646 (1871).

B. The passage of the Federal Civil Rights Act did not abrogate this traditional immunity. Pierson v. Ray, 386 U.S. 547, 87 S.Ct.1213, 80 L.Ed.2d 288 (1967).

C. An exception to the rule of judicial immunity exists which is founded upon a distinction between excess of jurisdiction and the absence of all jurisdiction. Bradley v. Fisher, supra. Where there is jurisdiction over the subject-matter and the person there is immunity, and even though a judge acts in excess of his jurisdiction the immunity remains.

D. Where the act is done in the clear absence of all jurisdiction and this is known to the judge, there is no immunity. Cf. Rhodes v. Houston, 202 F.Supp. 624 (D.C. Nebr. 1962)

"Jurisdiction" to hear Defendant Ora McFarlin's petition was present in the DeKalb Circuit Court by virtue of the broad jurisdictional powers conferred upon it. Judge Eschbach, after recognizing that the Circuit Courts of Indiana are courts of general jurisdiction having "original, exclusive jurisdiction in all cases at law and equity whatsoever," found "there is jurisdiction (emphasis added) in such a court to hear petitions for tubal ligation (by implication, citing A.L. v. G.R.H. 325

